

UNITED STATES DEPARTMENT OF AGRICULTURE
BEFORE THE SECRETARY OF AGRICULTURE

In re:

Teresa Rauch,

Respondent.

AWA Docket No. 26-J-0007

COMPLAINT

There is reason to believe that the Respondent named herein has violated the Animal Welfare Act, as amended (7 U.S.C. § 2131 *et seq.*) (AWA or Act), and the regulations (9 C.F.R. Part 2) (Regulations) and standards issued thereunder (9 C.F.R. Part 3) (Standards). Therefore, the Administrator of the Animal and Plant Health Inspection Service (APHIS) issues this complaint alleging the following:

JURISDICTIONAL ALLEGATIONS

1. Respondent is an individual who resides in Missouri.
2. Respondent's mailing address will not be provided in the complaint to protect their personal privacy but will be provided to the Hearing Clerk's Office, United States Department of Agriculture, for the purpose of serving this complaint and future documents.
3. At all times material herein, the Respondent operated as a dealer, as that term is defined in the Act and Regulations, and held AWA license 43-A-6768.

ALLEGED VIOLATIONS

4. On or about March 23, 2023, the Respondent willfully violated the Regulations (9 C.F.R. § 2.40(b)(2)) by failing to provide adequate veterinary care to animals and/or failing to establish and maintain programs of adequate veterinary care that included appropriate methods to prevent,

control, diagnose, and treat diseases and injuries, and/or daily observation of animals, as follows:
a dog had excessively matted hair along its back, tail, and hind legs.

5. On or about March 23, 2023, the Respondent willfully violated the Regulations (9 C.F.R. § 2.100(a)) by failing to construct and/or maintain primary enclosures so that they enabled the dogs to remain dry and clean, as follows: four primary enclosures had inadequate drainage resulting in wet and dirty dogs. 9 C.F.R. § 3.6(a)(2)(v).

6. On or about March 23, 2023, the Respondent willfully violated the Regulations (9 C.F.R. § 2.100(a)) by failing to clean primary enclosures, as follows:

a. Respondent failed to remove standing water from two outside enclosures. 9 C.F.R. § 3.11(a).

b. Respondent failed to remove fecal material from the inside portion of an enclosure. 9 C.F.R. § 3.11(a).

7. On or about March 23, 2023, the Respondent willfully violated the Regulations (9 C.F.R. § 2.100(a)), by failing to sanitize primary enclosures before they are used to house dogs as follows: Respondent failed to remove excessive dirt and grime from the walls of a primary enclosure. 9 C.F.R. § 3.11(b)(1).

8. On or about June 16, 2023, the Respondent willfully violated the Regulations (9 C.F.R. § 2.40(b)(2)) by failing to provide adequate veterinary care to animals and/or failing to establish and maintain programs of adequate veterinary care that included appropriate methods to prevent, control, diagnose, and treat diseases and injuries, and/or daily observation of animals, as follows: two dogs had dried fecal matter attached to the hair around their anuses.

9. On or about November 21, 2023, the Respondent willfully violated the Regulations (9 C.F.R. § 2.100(a)), by failing to construct and/or maintain primary enclosures so that they

enabled the Respondent's dogs to remain dry and clean, as follows: the ground in one or more outdoor enclosures housing dogs was wet over the entire surface without sufficient drainage. 9 C.F.R. § 3.6(a)(2)(v).

10. On or about February 5, 2024, the Respondent willfully violated the Regulations (9 C.F.R. § 2.40(b)(2)) by failing to provide adequate veterinary care to animals and/or failing to establish and maintain programs of adequate veterinary care that included appropriate methods to prevent, control, diagnose, and treat diseases and injuries, and/or daily observation of animals, as follows: a dog had excessively matted hair on its back, rump, sides and legs.

11. On or about February 5, 2024, the Respondent willfully violated the Regulations (9 C.F.R. § 2.100(a)), by failing to keep clean and/or sanitize one or more food receptacles used by dogs. 9 C.F.R. § 3.9(b).

12. On or about January 29, 2025, the Respondent willfully violated the Regulations (9 C.F.R. § 2.40(b)(2)) by failing to provide adequate veterinary care to animals and/or failing to establish and maintain programs of adequate veterinary care that included appropriate methods to prevent, control, diagnose, and treat diseases and injuries, and/or daily observation of animals, as follows: a dog had excessive tartar and material buildup, swollen and red gums, and severe gum recession.

13. On or about April 24, 2025, the Respondent willfully violated the Regulations (9 C.F.R. § 2.40(b)(2)) by failing to provide adequate veterinary care to animals and/or failing to establish and maintain programs of adequate veterinary care that included appropriate methods to prevent, control, diagnose, and treat diseases and injuries, and/or daily observation of animals, as follows:

- a. A dog was found with excessive tartar and material buildup, severe gum recession, and red, swollen gums.

- b. A dog was found with excessive tartar and material buildup and severely red, swollen gums.

14. On or about July 15, 2025, the Respondent willfully violated the Regulations (9 C.F.R. § 2.126(b)) by failing to have a responsible adult available to accompany APHIS officials during the inspection process.

15. On or about August 27, 2025, the Respondent willfully violated the Regulations (9 C.F.R. § 2.40(b)(2)) by failing to provide adequate veterinary care to animals and/or failing to establish and maintain programs of adequate veterinary care that included appropriate methods to prevent, control, diagnose, and treat diseases and injuries, and/or daily observation of animals, as follows: a dog was observed with untreated limping on her right front and back legs.

16. On or about August 27, 2025, the Respondent willfully violated the Regulations (9 C.F.R. § 2.100(a)) by failing to construct and/or maintain primary enclosures so that they have no sharp points or edges that could injure the dogs, as follows: a primary enclosure had a metal tin sheet along the side that had been pulled away creating a sharp edge. 9 C.F.R. § 3.6(a)(2)(i).

17. On or about August 27, 2025, the Respondent willfully violated the Regulations (9 C.F.R. § 2.100(a)) by failing to keep premises where housing facilities are located clean and in good repair to protect the animals from injury, facilitate husbandry practices required in Subpart A of the Regulations, and reduce or eliminate breeding and living areas for pests and vermin, as follows: the sheltered building had an accumulation of items and dust piled up and the shed for food storage had an accumulation of boxes, empty feed bags, and a cart with open straw. 9 C.F.R. § 3.11(c).

WHEREFORE, it is hereby ordered that for the purpose of determining whether the Respondent has, in fact, violated the Act, Regulations, and Standards promulgated thereunder,

this complaint shall be served upon the Respondent. Respondent shall have twenty (20) days after service of this complaint in which to file an answer with the Hearing Clerk, United States Department of Agriculture, Washington, D.C. 20250-1400, in accordance with the applicable Rules of Practice (7 C.F.R. § 1.136). Failure to deny or otherwise respond to any allegation in this complaint shall constitute an admission of the allegation. Failure to file an answer within the prescribed time shall constitute an admission of the allegations in this complaint and a waiver of hearing. APHIS requests that this matter proceed in accordance with the Rules of Practice governing proceedings under the Act, and that such order or orders be issued as are authorized by the Act (7 U.S.C. § 2149) and warranted under the circumstances.

Done at Washington, D.C.
this ____ day of _____ 2025

SARAH HELMING

Digitally signed by SARAH
HELMING
Date: 2025.12.18 10:09:41 -05'00'

Dr. Michael Watson
Administrator
Animal and Plant Health Inspection Service

Danielle Park
Attorney for Complainant
Office of the General Counsel
United States Department of Agriculture
1400 Independence Avenue, S.W.
Room 2324D South Building
Washington, D.C. 20250
(202) 878-0730
danielle.park@usda.gov